23STCV26302 23STCV26302

County: los-angeles

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Case Number: 23STCV26302 Hearing Date: July 10, 2026 Dept: 11

Preliminary Approval of Class Action
Settlement

Department SSC-11

Zachary Brown v. Touchstone Golf, LLC

Case
No.: 23STCV26302

Hearing: July 10, 2026

TENTATIVE RULING

CONTINUE
preliminary approval for the parties to address the issues listed on the accompanying checklist.

BACKGROUND

Plaintiff
Zachary Brown sues his former employer, Defendant Touchstone Golf, LLC, for alleged wage and hour violations. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

On October
26, 2023, Plaintiff filed a putative wage and hour class action complaint against Defendant for: (1) failure to pay minimum and straight time wages

(Labor Code §§ 204, 1194, 1194.2, and 1197); (2) failure to pay overtime wages (Labor Code §§ 1194 and 1198); (3) failure to provide meal periods (Labor Code §§ 226.7 and 512); (4) failure to authorize and permit rest periods (Labor Code § 226.7); (5) failure to timely pay final wages at termination (Labor Code §§ 201-203); (6) failure to provide accurate itemized wage statements (Labor Code § 226); (7) failure to indemnify employees for expenditures (Labor Code § 2802); and (8) unfair business practices (Business and Professions Code §§ 17200, et seq.).

On
December 11, 2023, pursuant to Labor Code §2699.3, subd.(a), Plaintiff gave notice to the LWDA and Defendant of the specific provisions the Labor Code alleged to have been violated. On March 5, 2024, Plaintiff filed a First Amended Complaint which added a cause of action for civil penalties under PAGA.

On March 4, 2025, the Parties
participated in private mediation with mediator Steven J. Serratore, which resulted in settlement. The terms of settlement were finalized in the long-form Class Action and PAGA Settlement Agreement ("Settlement Agreement"), a copy of which is attached to the Declaration of Conor J.D. Gomez ("Gomez Decl.") as Exhibit 1.

Now
before the Court is the Motion for Preliminary Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

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"Class" means all persons employed by Defendant in California and classified as hourly non-exempt employees who worked for Defendant at any time during the Class Period. (¶1.5)

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"Class
Period" or "Class Settlement Period" means the period from December 2, 2020, to May 3, 2025, or such other date as determined consistent with Section 8 hereafter at Defendant's option. ("Settlement Class Period"). (¶1.13)

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“Aggrieved Employee" means all persons employed by Defendant in California and classified as hourly non-exempt employees who worked for Defendant at any time during the PAGA Period. (¶1.4)

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“PAGA Period” means the period from December 30, 2022, to May 3, 2025, or such other date as determined consistent with Section 8 hereafter at Defendant's option. (¶1.33)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

.

The Gross Settlement Amount (“GSA”) is $1,375,000, non-reversionary. (¶3.1)

o Escalator Clause: For purposes of this Agreement, the Parties have agreed upon an estimate of 1,656 Class Members who collectively worked a total of 90,000 Workweeks during the Class Period. Should the total number of Workweeks exceed 90,000 by 10% or more, Defendant shall have the option to (1) increase the Gross Settlement Amount on a pro rata basis for every 1 % increase in Workweeks over the 10% threshold (i.e. if the Workweeks increase by 12%, the Gross Settlement Amount will increase by 2%) or (2) end the Class Period and PAGA Period on the day the total number of Workweeks first exceeds 10%. (¶8)

.

The Net Settlement Amount (“Net”) ($724,916.67) is the GSA minus the following:

o Up to $458,333.33 (33 1/3%) for attorney fees (¶3.2.2);

o Up to $31,000 for litigation costs (Ibid.);

o Up to $7,500 for a Service Payment to

the Named Plaintiff (¶3.2.1);

o Up to $15,750 for settlement
administration costs (¶3.2.3); and

o Payment of $137,500 PAGA penalty ($89,375 or 75% to the
LWDA) [75% should be
$103,125]. (¶3.2.5)

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Defendant
will separately pay any and all employer payroll taxes owed on the Wage
Portions of the Individual Class Payments. (¶3.1)

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There
is no claim form requirement. (¶3.1)

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Individual Settlement Payment Calculation: The
Individual Class Payment will be calculated as follows: (a) dividing the Net
Settlement Amount by the total number of Workweeks worked by all Participating
Class Members during the Class Period, and (b) multiplying the result by each
individual Participating Class Member's Workweeks. (¶3.2.4) Non-Participating Class Members will
not receive any Individual Class Payments. The Administrator will retain
amounts equal to their Individual Class Payments in the Net Settlement Amount
for distribution to Participating Class Members on a pro-rata basis. (¶3.2.4.2)

o PAGA Payments: The Administrator will
calculate each Individual PAGA Payment by (a) dividing the amount of the
Aggrieved Employees' 25%
share of PAGA Penalties ($48,125.00)
[incorrect amount] by the total number of PAGA Period Pay Periods
worked by all Aggrieved Employees during the PAGA Period, and (b) multiplying
the result by each individual Aggrieved Employee's PAGA Pay Periods. (¶3.2.5.1)

o Tax Allocation: Individual Class Payments made to
Participating Class Members will be attributed as 10% wages and 90% interest
and penalties. (¶3.2.4.1) The Administrator will report the Individual PAGA
Payments on IRS 1099 Forms. (¶3.2.5.2)

.

Response Deadline: “Response Deadline” means 45 days after the Administrator mails Notice to Class Members and Aggrieved Employees and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail his or her Objection to the Settlement. Class Members to whom Notice packets are resent after having been returned undeliverable to the Administrator shall have an additional 14 days beyond the Response Deadline has expired. (¶1.44) The same deadline applies to the submission of workweek disputes. (¶7.6)

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Funding of Settlement: Defendant shall fully fund the Gross Settlement Amount and the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than 14 days after the Effective Date. (¶4.3)

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Disbursement: Within seven (7) days after Defendant fully funds the GSA, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Costs Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.4)

.

Uncashed Settlement Checks: The face of each check shall prominently state the date (180 days after the date of mailing) when the check will be voided ("Void Date"). (¶4.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and canceled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.4.3)

.

The settlement administrator will be Phoenix Settlement Administrators. (¶1.2)

The proposed Settlement Agreement was submitted to the LWDA on March 20, 2026. (Proof of Service filed March 20, 2026.)

Participating class members and the named Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1. Does a presumption of fairness exist?

1. Was the settlement reached through arm's-length bargaining? On March 4, 2025, the Parties participated in private mediation with mediator Steven J. Serratore, which resulted in settlement. (Gomez Decl., ¶¶7-8.)

2. Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Class Counsel represents that following the filing of the Action, the Parties exchanged documents and information before going to mediation. Defendant produced a sample of time and pay records for Class Members. Defendant also provided documents of its wage and hour policies and practices during the Class Period, and information regarding the total number of current and former employees in its informal discovery responses. (Id. at ¶5.) Class Counsel reviewed these records and utilized an expert to prepare a damages analysis prior to mediation. (Id. at ¶6.)

3. Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including

wage and hour class actions. (Id.
at ¶¶39-51.)

4.
What
percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:
Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the
court receive objections to the proposed settlement, it will consider and
either sustain or overrule them at the fairness hearing.").

CONCLUSION: The settlement is entitled to a presumption
of fairness.

2.
Is the settlement fair, adequate, and
reasonable?

1.
Strength
of Plaintiff's case. "The most important factor is the strength of
the case for plaintiff on the merits, balanced against the
amount offered in settlement." (Kullar v. Foot Locker Retail, Inc.
(2008) 168 Cal.App.4th 116, 130.) Here,
Class Counsel has provided information, summarized below, regarding the
estimated values of the class claims alleged:

Violation	Maximum Exposure	Realistic Exposure
Unpaid Wages	$2,482,650.00	$496,530.00

Meal
Period Violations

$2,363,482.80

$472,696.56

Rest
Period Violations

$2,813,670.00

$281,367.00

Unreimbursed
Business Expenses

$900,000.00

$180,000.00

Waiting
Time Penalties

$5,336,042.40

$1,668,678.48

Wage
Statement Penalties

$1,578,950.00

PAGA
Penalties

$1,428,400.00

Total

$16,903,195.20

$3,099,272.04

(Gomez Decl., ¶¶15-23.)

2. Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 ("Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.").)

4. Amount offered in settlement. Plaintiff's counsel obtained a $1,375,000 non-reversionary settlement. This is approximately 8.1%-44.4 of Plaintiff's potential recovery which, given the uncertain outcomes, is within the "ballpark" of reasonableness.

The settlement amount, if reduced by the requested deductions, leaves approximately $724,916.67 to be divided among approximately 1,656 class members. Assuming full participation, the resulting payments will average approximately $437.75 per class member.

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action

litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the
proposed settlement. The class members’ reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes
relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

3.
Scope of the release

Releases of Claims. Effective on the
date when Defendant fully funds the Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶5)

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Released Class Claims: All Participating Class Members
release the Released Parties from all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation or claims based on facts occurring outside the Class Period. The Released Class Claims specifically exclude Plaintiff’s individual claims that will be released pursuant to a separate individual settlement agreement. (¶5.2)

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Released PAGA Claims: All Aggrieved Employees, including
Non-Participating Class Members who are Aggrieved Employees, are deemed to release the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the PAGA Period facts stated in the Operative Complaint and the PAGA Notice. The Released PAGA Claims specifically exclude

Plaintiff’s individual claims that will be released pursuant to a separate
individual settlement agreement. (¶5.3)

o “PAGA Notice” means
Plaintiffs December 11, 2023 letter to the LWDA and Defendant providing notice
pursuant to Labor Code section 2699.3, subd.(a), Case No. LWDA-CM-999147-23. (¶1.35)

o Because future PAGA
claims are subject to claim preclusion upon entry of the Judgment,
Non-Participating Class Members who are Aggrieved Employees are deemed to
release the Released PAGA Claims identified in Paragraph 5.3 of this Agreement
and are eligible for an Individual PAGA Payment. (¶7.5.4)

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“Released Parties” means Defendant and its present and former
companies, parent companies, subsidiaries, divisions, related or affiliated
companies, predecessors, insurers, shareholder, successors and assigns and
their current and former officers, directors, employees, agents and attorneys
thereof, both individually and in their business capacities, and their employee
benefit plans and programs and the trustees, administrators, fiduciaries and
insurers of such plans and programs. (¶1.42)

.

Named Plaintiff will also
provide a general release and CC § 1542 waiver. (¶¶5.1-5.1.1)

4.
May conditional class certification be
granted?

1.
Standards

A detailed analysis of the elements required
for class certification is not required, but it is advisable to review each
element when a class is being conditionally certified (Amchem Products, Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a
different standard to determine the propriety of a settlement class as opposed
to a litigation class certification.
Specifically, a lesser standard of scrutiny is used for settlement

cases. (Dunk at 1807, fn 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (Wershba at 240.)

2.

Analysis

a.

Numerosity. There are approximately 1,656 class members. (Gomez Decl., ¶15.) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) The class members are identifiable from Defendants’ records. (Gomez Decl., ¶15.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff alleges that the employment practices at issue are: whether Defendant had legally compliant policies and practices for all hours worked, including overtime wages; whether Defendant had legally compliant policies and practices to provide employees with meal periods; whether Defendant had legally compliant policies and practices authorizing and permitting its employees to take rest periods; whether Defendant reimbursed employees for business expenses; whether payment of wages during employed was timely; whether final payment of wages was untimely and excluded unpaid wages, including meal and rest period premium wages; whether wage statements were consequently non-compliant; and whether Defendant failed to pay wages at termination. Plaintiff contends that the factual and legal issues are the same for all the identified Class Members, including Plaintiff. Further, all Class Members suffered from, and seek redress for, the same alleged injuries. (Memo ISO Prelim at 18:9-24.)

As to typicality, Plaintiff is a former employee of Defendant; as such, Plaintiff alleges that Plaintiff was subject to the same policies and practices as other similarly situated employees. Thus, Plaintiff's claims arise out of the same practices of Defendant and rest on the same legal theories as those of the Class. (Id. at 18:26-19:9.)

As to adequacy, Plaintiff represents that he is aware of the duties and risks of serving as class representative and has participated in the litigation. (Declaration of Zachary Brown, ¶¶5-16.)

d.

Adequacy of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5.

Is the notice proper?

1.

Content of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Notice will be given in English and Spanish. (¶1.12)

2. Method of class notice.

Not later than 10 business days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2) Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice with Spanish translation. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2)

Not later than five (5) days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3)

The deadlines for Class Members' written objections, challenges to Workweeks and/or PAGA Pay Periods, and Requests for Exclusion will be extended an additional 14 days beyond the 45 days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. (¶7.4.4) Notice of Final Judgment will be posted on the Settlement Administrator’s website. (¶7.8.1)

3. Cost of class notice. As indicated above, settlement administration costs are estimated not to exceed $15,750. Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred

and anticipated to be incurred to finalize the settlement for approval by the Court.

6. Attorney fees and costs

CRC rule 3.769(b) states: “Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.”

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, “the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $458,333.33 (33 1/3%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs sought (capped at $31,000) by detailing how they were incurred.

7.
Incentive Award

..... The Settlement Agreement provides for an enhancement award of up to $7,500 to the named Plaintiff. In connection with the final fairness hearing, named Plaintiffs must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he or she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement awards at the time of final approval.

. . . . .

LOS ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST FOR

PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Department: SSC-11

RE: Brown v. Touchstone Golf, LLC (Case No. 23STCV26302)

In reviewing your motion for preliminary approval of class action settlement, the Court orders further briefing on the items checked below.

The additional briefing
shall be due by ____________________________________, 2026. Note: if briefing is not filed by said date the hearing will be placed off calendar. Your hearing date set for ______________, is continued to the first available date of
__________ at _____ in Department 11.

1.
Settlement Agreement ¶5.2 and ¶5.3 each reference "Plaintiffs' individual claims that will be released pursuant to a separate individual settlement agreement." Provide further briefing to support the contention that Plaintiff is an adequate class representative. Did Plaintiff file a separate lawsuit for any individual claims against Defendant, and if so, were they dismissed with or without prejudice? Were the individual and class settlements negotiated at the same mediation? How much is Plaintiff receiving under his individual settlement and is it contingent upon approval of the class settlement? Most importantly, why is there not a potential conflict of interest between Plaintiff and the class? Further, the Class Notice must disclose the nature of Plaintiff's individual claims and the amount of the individual settlement.

2.
See Defendant's Request for a 90 Day Continuance of Plaintiff's Motion for Preliminary Approval filed May 21, 2026. It is unclear why a 90-day continuance is necessary for Defendant to conduct a statistical analysis of its own class data. What is the current status of the data and Defendant's assessment of it? Why would it not be sufficient to provide the class data to the settlement administrator (Phoenix Settlement Administrators) for review, as stated at Settlement Agreement ¶4.2 and is common practice during the settlement approval process?

3.
If feasible - The escalator clause at Settlement Agreement ¶8 provides Defendant with the option to shorten the Class/PAGA Period in lieu of increasing the Gross Settlement Amount. This must be confirmed prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and settlement administrator should review and verify the workweek total and confirm the end date of the Class/PAGA Period. Revise the agreement and notice if necessary.

4.

At Settlement Agreement ¶¶3.2.5-3.2.5.1, carefully review and correct the percentages and allocations of the PAGA Penalties. 75% of $137,500 should be $103,125, not $89,375. Ensure the terms in the notice are consistent.

If the Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties and counsel. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms. Modify notice to match any alterations to the Settlement Agreement.

Date: ____________, 2026

____

JUDICIAL
OFFICER